

24STCV34588 24STCV34588

County: los-angeles

Division: Civil Law and Motion

Department: 734

Hearing date: 2026-09-11

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C734%2C09%2F11%2F2026

Source SHA-256: d2c46ff7a9c09322643ab3ca859d05727fb2cf0fb2207958e28b27a0754928dd

Case Number: 24STCV34588 Hearing Date: September 11, 2026 Dept: 734

The

following tentative ruling is issued pursuant to Rule of Court 3.1308 at 12:43 PM on September 9, 2026.

Rule

of Court 3.1308(a)(1) provides that a “tentative ruling will become the ruling of the court if the court has not directed oral argument by its tentative ruling and notice of intent to appear has not been given.”

The

Court does not desire oral argument on the motion addressed herein. Notice of intent to appear is REQUIRED pursuant to California Rule of Court 3.1308(a)(1).

No

later than 4:00 p.m. on September 10, 2026, the moving and opposing parties must provide notice to ALL OTHER PARTIES and the staff of Department 734 whether the party intends to (1) appear and argue the motion, or (2) submit to the tentative ruling.

Notice to Department 734 should be sent by

email to smcdept734@lacourt.org, with opposing parties copied on the email. The high volume of telephone calls to Department 734 may delay the Court's receipt of notice, so telephonic notice to 213-830-0776 should be reserved for situations where parties are unable to give notice by email.

Plaintiff alleges wage and hour

violations, sexual harassment, and wrongful termination.

Plaintiff Marshae Michelle Martin

moves to compel the deposition of Defendants Dwayne Walker, Rashawn Prince and Rayshawn Billups and requests the imposition of sanctions.

TENTATIVE RULING

Plaintiff Marshae Michelle

Martin's motions to compel the deposition of Defendants Dwayne Walker, Rashawn Prince and Rayshawn Billups are DENIED.

Per the Opposition, the

depositions of Walker and Prince took place on August 21, 2026 and August 20, 2026, respectively. As such, the motion to compel is moot as to those depositions. As to Billups, Defendant's counsel offered dates of availability, Plaintiff's counsel did not respond as to a date for Billups' deposition.

Plaintiff's requests for

sanctions are DENIED. The notices of motion do not comply with Civ. Proc. Code, § 2023.040, which provides in pertinent part: "A request for a sanction shall, in the notice of motion, identify every person, party, and attorney against whom the sanction is sought, and specify the type of sanction sought."